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CASE #	CASE NAME	HEARING NAME
CVPS2508934	STEIN VS GUITAR	MOTION FOR ATTORNEYS FEES BY DEFENDANT JANE DOE

Tentative Ruling: Attorneys' fees may be awarded to a prevailing party as costs when authorized by contract, statute or law. (CCP § 1033.5(a)(10).) Here, the statutory basis authorizing fee award is found in the anti-SLAPP statute at CCP §425.16(c)(1), which provides that, other than in few exceptional categories of cases to which this case does not belong, "a prevailing defendant on a special motion to strike shall be entitled to recover his or her attorney's fees and costs." (CCP §425.16(c)(1).) Any fee award is mandatory. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) The fee award must be reasonable. (*Robertson v. Rodriguez* (1995) 35 Cal.App.4th 347, 362.) The fee award is limited to fees and costs incurred on the special motion to strike, and not the entire litigation. (See *S. B. Beach Properties v. Berti* (2006) 39 Cal.4th 374, 381; 569.) The fee award may not include matters unrelated to the anti-SLAPP motion, such as attacking service of process, preparing and revising an answer to the complaint, summary judgment research or attending a mandatory case management conference. (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal. App. 5th 426, 433.) The fee award is designed to "reimburse the prevailing defendant for expenses incurred in extracting herself from a baseless lawsuit [citation omitted] rather than to reimburse the defendant for all expenses incurred in the baseless lawsuit. (Id, emphasis in original.)

Prevailing Party Analysis:

Generally, voluntary dismissal of a lawsuit terminates the trial court's jurisdiction over the matter." (*O'Dell v. Freightliner Corp.* (1992) 10 Cal.App.4th 645, 659.) If a plaintiff dismisses the action while anti-SLAPP motion is pending, the trial court is given the limited jurisdiction to determine whether the attorney's fees are proper. (*Law Offices of Andrew L. Ellis v. Yang* (2009) 178 Cal. App. 4th 869, 878-879.) "[A] defendant who is voluntarily dismissed, with or without prejudice, after filing a section 425.16 motion to strike, is nevertheless entitled to have the merits of such motion heard as a predicate to a determination of the defendant's motion for attorney's fees and costs under subdivision (c) of that section." (*Liu v. Moore* (1999) 69 Cal. App. 4th 745, 751.) Before awarding fees and costs, the court must determine whether the defendant would have prevailed on his or her anti-SLAPP motion. (*Tourgeman v. Nelson & Kennard* (2014) 222 Cal.App.4th 1447, 1457.) Doe is entitled to a determination of her Anti-SLAPP Motion for the purpose of establishing prevailing party status under the anti-SLAPP statute.

In applying the anti-SLAPP statute, the Court engages in a two-step process: first, the moving defendant must demonstrate that the act or acts of which the plaintiff complains were taken in furtherance of the defendant's right of petition or free speech. (*Jarrow Formulas, Inc. v. LaMarche* (2003) 31 Cal. 4th 728, 733.) Once such a prima facie showing has been made, the court then determines whether the plaintiff has demonstrated a probability of prevailing on the claim. (*Id.*) The court does not weigh the credibility or comparative probative strength of competing evidence, but should grant the motion if, as a matter of law, the defendant's evidence supporting the motion defeats the plaintiff's attempt to establish evidentiary support for the claim. (*Nygard, Inc. v. Uusi-Kerttula* (2008) 159 Cal. App. 4th 1027, 1044.) The anti-SLAPP statute should be construed broadly in favor of the exercise of freedom of speech. (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal. 4th 1106, 1119.)

The parties do little to address the issue of the merits in connection with the fee motion. Instead, they rely on the Anti-SLAPP Motion itself. Pursuant to her Anti-SLAPP Motion, Doe argued that this lawsuit meets the first prong of the anti-SLAPP statute because it is based on the filing of a lawsuit and a prelitigation demand letter. Plaintiff did not oppose the Motion.

“To determine the applicability of . . . the anti-SLAPP statute, [courts] look to the gravamen of the instant action. . . . [T]he gravamen of an action is the allegedly wrongful and injury-producing conduct, not the damage which flows from said conduct.” (*Renewable Resources Coalition, Inc. v. Pebble Mines Corp.* (2013) 218 Cal.App.4th 384, 387.) Litigation related conduct and communications, including filing, funding, prosecuting, and defending a lawsuit are protected activity under CCP § 425.16 (b)(1). (*Optional Capital, Inc. v. Akin Gump Strauss, Hauer & Feld LLP* (2017) 18 Cal.App.5th 95, 113.) The courts have “[r]ecognized petitioning activities thus include not only the conduct of litigation but also acts and communications reasonably incident to litigation, including prelitigation settlement negotiations.” (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1025.) Prelitigation statements generally fall within CCP § 425.16(e)(1) and (2). (*Osborne v. Pleasanton Automotive Co., LP* (2024) 106 Cal.App.5th 361, 377.) “Ordinarily, a demand letter sent in anticipation of litigation is a legitimate speech or petitioning activity that is protected under section 425.16.” (*Malin v. Singer* (2013) 217 Cal.App.4th 1283, 1293.)

Plaintiff’s causes of action are based on the contents of a prelitigation letter sent by counsel or on this letter and the filing of a lawsuit by Doe in Los Angeles County. (Complaint, ¶¶ 60, 68, 69, 75, 77, 84, 91, 92, 97, 98, and 107.) The Court previously determined that this conduct has satisfied the first prong of the anti-SLAPP statute in granting the Fierberg Defendants’ Anti-SLAPP Motion. The same analysis applies here. Doe has established that the Complaint involves protected activity.

Doe asserts that Plaintiff cannot meet the second prong of the statute because Plaintiff’s claims are barred by the litigation privilege and fail as a matter of law. The litigation privilege applies “to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action.” (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 212.) “The privilege is absolute and applies regardless of malice. However, the privilege does not apply to malicious prosecution actions.” (*Malin, supra*, 217 Cal.App.4th at 1300.) Prelitigation communications also fall within the litigation privilege, if they relate to litigation contemplated in good faith and under serious consideration. (*Digerati Holdings, LLC v. Young Money Entertainment, LLC* (2011) 194 Cal.App.4th 873, 889.) Good faith requires a connection or logical relationship between the prelitigation communication to a contemplated action and the communication is made to achieve the objects of litigation. (*Id.*) A prelitigation settlement demand that relates to litigation threatened by an individual, where the statements in the letter bear a connection or relationship to the proposed litigation and pertains to settlement, meets these requirements. (*Flickinger v. Finwall* (2022) 85 Cal. App. 5th 822, 840.)

In this case, the first cause of action is based entirely on the prelitigation letter. The second, third, fourth, fifth, sixth, and seventh causes of action are based on the prelitigation letter and the filing of the sexual battery lawsuit. (Complaint, ¶¶ 60, 68, 69, 71, 75, 77, 84, 91, 92, 97, 98, and 107.) The litigation privilege applies to the filing of the lawsuit. Therefore, Plaintiff’s claims fail to the extent that they are based on the filing. Moreover, the prelitigation settlement letter was sent for settlement purposes. (RJN, Ex.

CC. Ex. O.) As such, the claims based on the prelitigation settlement letter are also barred. Plaintiff also has not produced any evidence in opposition to the Anti-SLAPP Motion. Accordingly, Doe has established that she would have prevailed on the merits of the Anti-SLAPP Motion. As such, she is entitled to fees and costs.

Fee Award Analysis:

The amount of an attorney fee award under the anti-SLAPP statute is computed using the lodestar method under which the court multiplies the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work. (*Cabral v. Martins* (2009) 177 Cal. App. 4th 471, 491.) The court has discretion to award less than requested if it determines that the fee request is unreasonable. (*Christian Research Institute v. Alnor* (2008) 165 Cal. App.4th 1315, 1322.)

The court may rely on its own experience in determining whether the hourly rate sought or hours spent on the matter are reasonable. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774.) “The “experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong” [’]—meaning that it abused its discretion. [Citations.]” (*Cabral, supra*, 177 Cal. App. 4th at 491.)

The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 177 Cal. App. 4th 471, 491.) In determining the value of the legal service, courts consider several factors, including, “the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case.” (Id at 1096.) Counsel asserts that his customary hourly rate is \$550. (Decl. of Simon, ¶ 11.) This rate is reasonable for similar work in Riverside County.

Counsel for Doe vaguely claims that he incurred 25 hours in connection with the Anti-SLAPP Motion and six hours in connection with the present Motion. (Decl. of Simon, ¶¶12, 13.) He spent an additional six hours reviewing the Opposition and drafting the Reply. (Supp. Decl. of Simon, ¶6.) Counsel did not provide billing records or other evidence to support these contentions.

Plaintiff argues that the hours claimed by counsel are also excessive and unsupported by evidence. An attorney’s testimony as to the number of hours incurred may be sufficient to support a fee award without detailed time records. (*Steiny & Co. v. Cal. Elec. Supply Co.* (2000) 79 Cal. App. 4th 285, 293.) However, a general explanation of the extent or nature of services rendered is insufficient. (*Martino v. Denevi* (1986) 182 Cal. App. 3d 553, 559-560.) Because the defendant bears the burden of establishing that fees were associated with the anti-SLAPP motion and documenting the appropriate hours, the court may require the defendant to produce records sufficient to provide a proper basis for determining the reasonableness of the fee request. (*ComputerXpress, Inc. v. Jackson* (2001) 93 Cal. App. 4th 993, 1020.)

Based on the Declaration of counsel it is impossible to determine whether the hours incurred were reasonable and related to the Anti-SLAPP motion rather than the lawsuit more generally.

Defendant Jane Doe’s Motion for Attorney Fees and Costs is continued to 9.01.26.

The court finds that Jane Doe would have prevailed on the merits of the Anti-SLAPP motion and that she is entitled to attorney fees and costs.

Attorney Kline is ordered to submit additional evidence describing the tasks performed and the amount of time spent, in relation to Jane Doe's Anti-SLAPP motion.

Plaintiff may file an updated opposition, no later than 10 court days prior to the continued hearing date.

No other briefing shall be permitted.